Joe Esparza, Chairman and Commissioner Representing Employers

Alberto Treviño III, Commissioner Representing Labor

Brent Connett, Commissioner Representing the Public

Steve Pier, Executive Director

Open Enrollment (OE) For

Independent Living Services for Older Individuals who are Blind

Open Enrollment No. 3202600157

Date of Release: May 18, 2026

Responses Due: November 16, by 10:00 a.m. CST

600-14 Braille Writers and Printers

785-17 Blind Teaching and Training Equipment and Supplies

785-93 Vocational Education Equipment and Supplies

924-86 Vocational Training, All Types, Including Vocational Rehabilitation and Technical Education

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Sole Point of Contact for this OE

Meghan Osborn, CTCD

TWC Procurement Portal

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Definitions

Table 1: Definitions

Term/Acronym	Definition
Addendum; Addenda; Amendment	A written addition, change, or supplement to this Solicitation that is posted to the ESBD and issued prior to the response due date.
Applicant	An entity or individual who submits a Provider Enrollment Packet in response to this Open Enrollment.
Business Day	The day and hours (Monday through Friday, 7 a.m. to 6:00 p.m. Central Time) at which TWC is open for business. TWC is closed for business on the scheduled holidays indicated by the State Auditor's Office available at https://hr.sao.texas.gov/holidays/. The terms "Working Day" and "Business Day" may be used interchangeably. All uncapitalized references to "day" shall mean calendar day.
CCTV	Closed-Circuit Television.

Term/Acronym	Definition
Confidential Information	Any communication or record (whether oral, written, electronically stored or transmitted, or in any other form) provided to or made available to Contractor or that Contractor may create, receive, maintain, use, disclose or have access to on behalf of TWC that consists of or includes any or all the following: a. Customer Information; b. Protected Health Information (PHI), in any form including, without limitation, Electronic Protected Health Information or Unsecured Protected Health Information; c. Sensitive Personal Information, as defined by Texas Business and Commerce Code, § 521.002(a)(2); d. Federal Tax Information; e. Personally Identifiable Information (PII) as defined by Texas Business and Commerce Code § 521.002(a)(1); f. Social Security Administration Data, including, without limitation, Medicaid information; g. All privileged work product; all information designated as confidential under the constitution and laws of the State of Texas and of the United States, including the Texas Health and Safety Code and the Texas Public Information Act, Texas Government Code, Chapter 552; h. Personally Identifiable Information defined by 2 CFR 200.1; and i. Information deemed confidential under The Rehabilitation Act of 1973, 29 U.S.C. Chapter 16, as amended, and implementing regulations 34 C.F.R. Parts 361 through 396.

Term/Acronym	Definition
Conflict of Interest	A situation that creates a risk that professional judgment or actions will be unduly influenced by a personal interest or relationship and creates substantial conflicts with the proper discharge of duties required by a contract and the public interest. Each Applicant must comply with the content on Conflict of Interest located in the VR-SFP Chapter 3: Basic Standards.
Contract	The written agreement entered into by TWC and Provider, which will incorporate the contents of this Open Enrollment and the Provider's Application, except as may be provided in the Contract and any amendments thereto.
Contractor (also Provider)	A legal entity or individual who TWC is contracted with to provide goods and/or services for TWC Customers. Contractor can be used interchangeably with Provider, Service Provider, or Vendor.
Contract Term	The definite period of time that the Contract will remain in effect, including all stated renewals and extensions.
Customer	An individual that has met the TWC eligibility criteria and has been approved to receive TWC Vocational Rehabilitation (VR) services.
CTCD	Certified Texas Contract Developer.
CTCM	Certified Texas Contract Manager.
ESBD	The Electronic State Business Daily. An online platform administered by the Statewide Procurement Division (SPD) of the Comptroller of Public Accounts (CPA). The ESBD may be accessed as http://www.txsmartbuy.com/esbd.

Term/Acronym	Definition
IFA or Invitation for Applications	This document including all exhibits, attachments, forms, and Addenda, if any.
ILP	Independent Living Plan.
ILS	Independent Living Services
I&R	Information and Referral.
Fiscal Year (FY)	Texas State Fiscal Year, September 1 through August 31.
Older Individuals who are Blind (OIB)	An individual age 55 or older whose significant visual impairment makes competitive employment extremely difficult to attain but for whom independent living goals are feasible.
PCS or Procurement and Contract Services	A department within TWC's Business Operations division.
PS	Procurement Services, a section within TWC.
Provider	The Applicant(s) with whom TWC executes a Contract to provide the goods and/or services that this Solicitation requires.
SME	Subject Matter Expert
Solicitation	This IFA (formerly Open Enrollment) including all exhibits, attachments, forms, and Addenda, if any.

Term/Acronym	Definition
State	The State of Texas and its instrumentalities, including TWC, its officers, employees, or authorized agents, and any other state agencies.
Subcontractor	Any entity(ies) or person(s) providing goods or services under the Contract on Provider's behalf, whether or not the entity(ies) or person(s) has/have a written agreement with the Provider. The term does not include a state agency; rather a subcontractor may be an officer or employee of a state agency when the officer or employee contracts with a vendor in a private capacity.
TWC	Texas Workforce Commission.
Vocational Rehabilitation Division (VRD)	The TWC Vocational Rehabilitation Division (VRD) administers the Vocational Rehabilitation Services Program, which is a joint state and federally funded program to assess, plan, develop, and provide VR services for eligible individuals with disabilities, consistent with their unique strengths, resources, priorities, concerns, abilities, capabilities, interests, and informed choice so that these individuals can prepare for and engage in competitive integrated employment and achieve economic self-sufficiency. In accordance with the Rehabilitation Act of 1973, as amended by Title IV of WIOA (29 U.S.C. § 720 et seq.). VRD is the single designated state unit for the VR program.

Term/Acronym	Definition
Vocational Rehabilitation Standards for Providers Manual (VRSFP)	The VR Standards for Providers (VR-SFP) Manual focuses on the business practices, processes, and policies that must be followed for TWC and the Contractor to comply with federal and state laws and TWC rules and requirements. The VR-SFP Manual ensures TWC-VR Customers receive quality services. Each Contractor should review the VR-SFP Manual and forms for changes every thirty (30) calendar days. Each Contractor is expected to be familiar with and comply with the most recently published VR-SFP Manual and use the most recently published forms applicable to their Contract.
VPTS	Vendor Performance Tracking System, as described under Texas Government Code § 2262.055 and 34 TAC § 20.115. Reporting requirements and vendor performance factors considered in VPTS are described in Texas Government Code § 2155.089 and 34 TAC § 20.509. The VPTS is available at: https://www.txsmartbuy.gov/vpts.

ARTICLE I PURPOSE, AUTHORITY AND SCHEDULE OF EVENTS

1.1 PURPOSE

The Texas Workforce Commission (TWC) is seeking Applications from qualified Service Providers to deliver services to be provided to Vocational Rehabilitation (VR) Customers served by TWC's VR division. This is an Open Enrollment (OE) opportunity.

Opportunities are available to provide Independent Living Services for Older Individual who are Blind to Vocational Rehabilitation (VR) customers served by the Texas Workforce Commission-Vocational rehabilitation (TWC-VR) division

on behalf of TWC in all areas of the state. Applicants must meet all requirements and specifications outlined herein to be eligible to provide services.

The TWC Procurement Services (PS) section will administer the procurement process for this OE, which includes OE publication, handling of communications from Applicants, as well as managing the receipt of Applications for review.

Information regarding TWC and its programs is available online and can be currently accessed at www.twc.texas.gov.

ARTICLE II SCOPE OF WORK

2.1 OVERVIEW/BACKGROUND

TWC's mission is to promote and support a workforce system that creates value and offers employers, families, individuals and communities the opportunity to achieve and sustain economic prosperity.

Independent Living Services for Older Individuals who are Blind (ILS-OIB) focuses on adjustment to blindness and development of skills so that customers can live confidently and independently in their homes and communities. The program's goals are to empower individuals with disabilities; maximize their leadership potential, independence, and productivity; and ensure their integration and full inclusion in society.

The ILS-OIB program promotes independent living by encouraging self-control, self-help, and self-determination, and by promoting equal access and individual and systemic advocacy. The program assists customers address the impact of their loss of vision so that each customer can achieve their independent living goals.

ILS-OIB helps customers:

- who are age 55 and older;

- whose have significant visual impairment;
- whose ability to function independently in the home, family, or community is substantially limited due to visual impairment; and
- for whom the delivery of independent living (IL) services will substantially improve their ability to function, continue functioning, or move toward functioning independently in the home, family, or community.

IL services provided by a contractor can only be provided when authorized by the TWC-VR OIB worker to address goals in a customer's Independent Living Plan (ILP).

IL services are provided in person with the trainer and customer at the same location. IL services within this chapter cannot be provided remotely.

Any request to change a Service Description, Process and Procedure, or Outcomes Required for Payment must be documented and approved by the VR director, using the VR3472, Contracted Service Modification Request for Blind and Visually Impaired Services, before the change is implemented. The approved VR3472 must be maintained in the provider's customer case file. For more information, refer to VR-SFP 3.4.11 Contracted Services Modification Request.

A provider's services can include one or more of the following:

- IL Skills Training;
- Orientation and Mobility (O&M) training;
- Diabetes Management Training;
- Braille Instruction;
- Equipment;
- Guide Services;

- Reader services;
- Transportation;
- Information and Referral (I&R);
- Peer counseling;
- Individual and family advocacy training;
- Advocacy training for the family; and
- Transition services, for moving a customer from a nursing home or other institution to the customer's home or other residence in the community, along with the necessary individual support services.

Other services include referral to and information to outreach services such as visual screening, surgery, or therapeutic treatment to prevent, correct, or modify disabling eye conditions, and hospitalization related to these services.

2.2 VR STANDARDS FOR PROVIDERS (VR-SFP) MANUAL

The VR Standards for Providers (VR-SFP) Manual focuses on the business practices, processes, and policies that must be followed for TWC and the Provider to comply with federal and state laws and TWC rules and requirements. Providers must adhere to the current VR-SFP Manual when providing services to VR Customers.

An Applicant applying for a contract must comply with the following VR-SFP Manual chapters in addition to the OE SOW.

- Chapter 1: Introduction to Vocational Rehabilitation
- Chapter 2: Obtaining a Contract for Goods and Services
- Chapter 3: Basic Standards

Notice of upcoming changes to the VR-SFP Manual are published on the Vocational Rehabilitation Providers' Resources page at least thirty (30)

calendar days in advance of the effective date of the changes. Each Provider is contractually responsible for maintaining compliance with the most current VR-SFP Manual.

A revision list that summarizes any formal changes to the VR-SFP Manual can be found on the Vocational Rehabilitation Standards for Providers Revision Log.

TWC GovDelivery notifies Providers every time revisions are posted to the VR-SFP Manual and other important information. All Providers should subscribe to TWC GovDelivery list to gain these notifications. Visit the TWC GovDelivery website, enter an email address, and select the topic "Vocational Rehabilitation Contractors and Providers News" to subscribe.

For questions about the content in the VR-SFP email, contact vr.standards@twc.texas.gov.

2.3 REQUIREMENTS

2.3.1 Staff qualifications

All IL skills trainers must have accomplished the following:

- Earned a bachelor's degree from an accredited college or university with a concentration in rehabilitation, education, psychology, sociology, or a related field and obtained:
    - one year of work experience in rehabilitation teaching, rehabilitation, or education of people with disabilities, or
    - two years' work experience in general education or other related field; and
- Presented written and/or hands-on training sessions on IL skills. Sessions must be observed and determined qualified by the ILS-OIB program specialist's designee. Preference is given to candidates who have experience providing individual, hands-on training to individuals

who are blind and/or visually impaired.

Note: Twelve Semester hours of graduate study from an accredited college or university may be substituted for each year of the required qualifying experience. One additional year of full-time qualifying work experience may be substituted for the course concentration requirements for the bachelor's degree.

2.3.2 Independent Living Skills Training

Independent Living Skills (ILS) Training aims to empower customers to live more independently. The following section details the range of services offered, the roles of the OIB worker and IL skills provider, and the requirements for payment.

2.3.2.1 SERVICE DESCRIPTION

Providers of IL skills services offer a variety of services in the customer's home or community.

Providers may provide one or more of the following, as authorized by the OIB worker:

- Application Assessment—the process of gathering referral data and information about the customer's preliminary need for services. The information, along with eye medical reports, is used by the OIB worker to determine an individual's eligibility for the ILS-OIB program.
- Comprehensive Assessment—the process of working with the customer to identify the issues that prevent him or her from functioning independently. The assessment, which occurs after the OIB worker determines eligibility, can also help a customer maintain or increase his or her independence. Comprehensive assessment includes listening to the customer describe problems related to the loss of vision, conducting

an in-depth interview to gather information, observing as the customer demonstrates his or her skills at home, and talking with family members or caregivers to gather any additional information. The comprehensive assessment is used by the OIB worker to develop the Independent Living Plan (ILP).

- Independent Living Skills Training—training in techniques that enable a customer to perform daily living skills in alternative ways. IL skills are divided into the following categories:
    - Personal management—including grooming, eating, health, safety, clothing identification and coordination, and the use of medications
    - Home management—including sewing, cleaning of clothing, housekeeping, meal preparation and kitchen safety skills, planning for grocery shopping, and minor home maintenance
    - Communication—including telling time and time management, using the telephone, money management, writing, organization, and using adaptive devices
    - Information access and technology—including training on the use of magnifiers, CCTVs, and other devices for low-vision, as well as adaptations of computers and other types of technology.
- Information and Referral (I&R) services that help the customer identify and use alternative resources, such as Meals on Wheels and the Texas State Library to meet his or her individual needs. I&R services can be provided at any point in the independent living process.

2.3.3 Process and Procedure

The following details the specific processes and procedures involved in IL Skills Training.

2.3.3.1 DIRECTING IL SKILLS TRAINING

The OIB worker coordinates casework and directs the IL skills provider in the provision of services.

The OIB worker:

- sends referrals to the IL skills provider for initial contact and application assessment;
- enters application information into the electronic case management system;
- determines customer eligibility for IL services;
- refers eligible customers to the IL skills provider for comprehensive assessment;
- develops the ILP with the customer and enters it into the electronic case management system;
- authorizes IL skills training hours;
- manages case records;
- reviews the documentation of services provided by the IL skills provider;
- authorizes the purchase of recommended equipment and services;
- documents the purchase of equipment and services in each customer's ILP; and
- arranges or provides for more complex services, including (but not limited to) braille instruction, orientation and mobility training within the customer's community, and diabetes education and training.

2.3.3.2 CASE MANAGEMENT

The OIB worker:

- determines a customer's eligibility for IL services;

- refers an eligible customer to the IL skills provider for specific IL services;
- manages case records for an eligible customer;
- reviews and approves individual training programs jointly developed by the IL skills provider and the customer;
- incorporates approved individual training programs into each customer's ILP;
- reviews documentation on the IL services provided by the IL skills provider;
- authorizes the purchase of recommended equipment and services;
- documents the purchase of equipment and services in each customer's ILP; and
- arranges or provides for more complex services, including braille instruction, orientation and mobility training within the customer's community, and diabetes education and training.

2.3.3.3 IL SKILLS PROVIDER RESPONSIBILITIES

The authorized IL skills provider:

- completes the application assessment;
- provides services as directed by the OIB worker and as described under the scope of services identified in the assessment;
- conducts a comprehensive assessment;
- submits the appropriate documentation for each type of service to the OIB worker for review and approval;
- provides training in basic independent living skills, as described in the comprehensive assessment and ILP;

- periodically assesses each customer's progress toward goals and timelines with the OIB worker;
- submits appropriate recommendations for purchasing products and services for each customer to the OIB worker; and
- provides the OIB worker with a written report of each contact and includes details of the assessment or service provided and the outcome.

2.3.3.4 INITIAL CONTACT

The IL skills provider must make the initial contact with a customer who is referred for independent living skills training within 15 working days of the referral.

2.3.3.5 APPLICATION ASSESSMENT

The application assessment must be completed within one to two hours of the initial contact.

The initial contact and application assessment must be conducted individually and must be documented using the following forms:

- VR5051, Application for Services *(Sample form not available.)*
- VR5053, Application Statement—ILS-OIB
- VR5060, Permission to Collect Information *(Sample form not available.)*
- VR5061, Notice and Consent for Disclosure of Personal Information *(Sample form not available.)*
- VR2891, Customer Services Report: ILS-OIB Progress Report

2.3.3.6 COMPREHENSIVE ASSESSMENT

The IL skills provider must contact a customer who is referred for a comprehensive assessment within 30 calendar days of the referral.

The IL skills provider must document the comprehensive assessment on VR2954, Comprehensive Assessment for Independent Living Program. The recommendations section of the form must list the IL skills training sessions and services that the IL skills provider has identified for inclusion in the customer's ILP.

2.3.3.7 INDEPENDENT LIVING SKILLS TRAINING

After the OIB worker has developed the ILP, the IL skills provider provides monthly training services as authorized by the OIB worker. The OIB worker documents the services each month using VR2891, Customer Services Report: ILS-OIB Progress Report.

The monthly progress report (VR2891) must:

- detail the services provided to the customer;
- document the outcome of each service; and
- include any recommendations for changes to the ILP.

2.3.3.8 PROVIDER AUTHORIZATION

Services must not begin until a service authorization has been issued.

Providers must have written authorization from ILS-OIB before providing services to a customer. If a service is provided before a service authorization is issued by ILS-OIB and received by the provider, ILS-OIB will not authorize payment for the service.

For additional information about provider authorization, see

- Chapter 1: Introduction to Vocational Rehabilitation,
- Chapter 2: Obtaining a Contract for Goods and Services, and
- Chapter 3: Basic Standards.

2.3.4 Outcomes Required for Payment

To facilitate payment after the assessment and/or training period, the provider of IL skills services submits the following (as applicable) at least every 35 days, using clear and descriptive terms:

- VR5053, Application Statement—ILS-OIB—after an application assessment is completed
- VR2954, Comprehensive Assessment for Independent Living Program—after a comprehensive assessment is completed
- VR2891, Customer Services Report: ILS-OIB Progress Report—at the end of the assessment and/or training period

The information entered must demonstrate the following:

- Attendance was recorded (include the total number of hours that the customer participated in services).
- All necessary accommodations were provided, compensatory techniques were used, and special needs were met for the customer to successfully participate in the services.
- The customers' performance, skills, and needs were assessed and the results summarized for the reporting period.
- The goals and objectives were measurable and established for all skills to be addressed.
- A projected timeline, including training hours, was established for each goal.

ILS-OIB does not pay fees related to excused or unexcused absences or holidays.

Payment for IL skills services is made when the OIB worker approves a complete, accurate, signed, and dated:

- invoice; and
- form (as applicable):
    - VR5053, Application Statement; and/or
    - VR2954, Comprehensive Assessment for Independent Living Program; and/or
    - VR2891, Customer Services Report: ILS-OIB Progress Report.

2.3.5 Orientation and mobility services

Orientation and Mobility (O&M) services prepare blind and visually impaired customers to travel independently with competence and confidence. O&M trainers offer complex, interrelated services designed to enable customers to travel independently. O&M training begins with an assessment and may include training held in environments frequently visited by the customer.

For the description of O&M services and for information on related guidelines, processes, and fees, refer to VR-SFP Chapter 5: Orientation and Mobility Services.

2.3.6 Diabetes Education services

Diabetes self-management and education services are used to:

- assess the customer's ability to independently manage his or her diabetes at home;
- assess the customer's ability to independently manage his or her diabetes in the workplace;
- prepare a customer to make informed choices about his or her diabetes; and

- help the customer develop the confidence and skills to implement his or her choices.

For the description of this service and for information on related guidelines, processes, and fees, refer to VR-SFP Chapter 7: Diabetes Self-Management Education Services.

2.3.7 IL skills training service fees

The fee for providing IL skills training, that is, training the customer directly or discussing the customer's training with the OIB worker — is $75 per hour.

2.3.8 Service Area

This is a statewide open enrollment solicitation. All Texas counties are included in this solicitation. If awarded a contract for these services, the Provider(s) may serve VR Customers throughout the state of Texas upon receipt of an approved service authorization issued on behalf of a VR Customer.

2.3.9 Background Checks

VR-SFP Manual Chapter 3: Basic Standards require each Provider to run background checks on each Provider staff member who will interact with any VR Customer. This includes any Provider staff who have any communication or other contact whether in person, on paper, by voice, by sign language, electronically or any other method. The only exception is for Provider staff who never communicate with or are physically present with a VR Customer. Background checks must be completed by the Provider before the Provider staff interacts with any VR Customer.

Applicants and Providers are responsible for obtaining a background check for all applicable Provider staff. A background check consists of running a name-based search from the Texas Department of Public Safety and checking the

National Public Sex Offender public website.

For more information on required background checks refer to the following resources:

- VR-SFP Chapter 3, Section 2.18 Background Checks
    - Convictions Barring Contractor Staff from Performing Services for TWC
    - Contracted Service Exempt from Background Checks
    - Exception to Background Check Instructions
    - Background Check FAQ
- Form VR1307 Background Checks Attestation and Release Form found at https://www.twc.texas.gov/programs/vocational-rehabilitation/forms
- Webinar: Background and National Public Sex Offender Requirements

2.3.10 Transportation of VR Customers

Transportation of VR Customers by a Provider (or Provider's staff) is not required. However, if a Provider (or Provider's staff or Provider's subcontractors) do transport a VR Customer in the Provider's vehicle or Provider's staff personal vehicle, they must meet the minimum liability requirements of the Texas Department of Insurance. The Provider must maintain current proof of insurance for any Provider staff who transports VR Customers. When Provider staff transports VR Customers in personal vehicles, the Provider staff must submit to VR proof of auto liability insurance as required by the Texas Department of Insurance with Form VR3455.

Verification statements on Form VR3455 must be signed by the Provider staff represented on the form and the Provider's Director appointed by the legal authorized representative.

2.3.11 Provider's Director

Each Provider/Entity must have a Director who meets the qualification as stated in the VR-SFP Manual, Chapter 3 Basic Standards. The Provider's/Entity's legally authorized representative must appoint Director(s) using Form VR3441A. The Provider's/Entity's Director must also have a VR 3455 included in the Application. Anytime the VR3455 is completed and/or updated the Provider must keep a copy on file and submit it to VR. For additional information refer to VR-SFP Manual Chapter 3.

2.3.12 Provider Staff Providing Services to VR Customers

For any service selected by the Applicant on VR3441B, the Applicant must have **at least one (1) person** who meets the qualifications to provide the service(s) as described in **Article II Scope of Work**.

Each Provider staff must have VR3455 with the supporting documentation (resumes, transcripts, proof of insurance, and credentials) included in the Application.

After contract award, a VR3455 with supporting documentation must be submitted for **each** person who will be providing services under the Contract. Each Provider must submit Form VR3455 and the supporting evidence that the staff member meets the required qualifications within 30 days of:

- hiring new staff member;
- making a significant change to a staff member's job duties such as fundamentally altering the nature of the job, requiring new skills, responsibilities, or a substantial time commitment;
- changing staff qualifications and/or credentials; or
- terminating a staff member.

For additional information refer to the VR-SFP Manual.

ARTICLE III GENERAL INFORMATION

3.1 AUTHORITY

TWC is soliciting the goods and/or services stated in this Solicitation under the statutory authority of Texas Labor Code §352.060.

All official communication (including, but not limited to, Schedule of Event changes, and Addenda will be posted to the Electronic State Business Daily (ESBD). TWC has no responsibility to communicate personally with each potential Applicant for this OE. Each interested party is solely responsible for checking the ESBD for official TWC communication regarding this OE.

3.2 SCHEDULE OF EVENTS

The dates in this Schedule of Events are tentative, and TWC reserves the right to modify these dates at any time. At the sole discretion of TWC, events listed in the Schedule of Events are subject to changes and cancellation. Scheduling changes or cancellation made prior to the Deadline for Submission of Applications will be published as an Addendum posted to the Electronic State Business Daily (ESBD) and the TWC Procurement Portal.

Applicant is required to sign and return all Addenda related to the Open Enrollment.

Table 2: Schedule of Events

EVENT	DATE and TIME
Open Enrollment Period	**Start Date:** May 18, 2026 **End Date:** November 16, 2026, by 10 a.m. CST **NOTE:** This solicitation may be closed sooner than the published end date if TWC receives sufficient applications to cover all required needs.

Applicant must submit their Application to TWC within the open enrollment period in accordance with Schedule of Events shown above, or as changed via a notification of an Addendum posted to the ESBD.

NOTE: **TWC reserves the right to close this solicitation at any time prior to the published deadline. If TWC determines that a sufficient number of applications or awarded contracts exist, this solicitation will be closed.**

3.3 CONTRACT DOCUMENTS

The Contract(s) resulting from this solicitation may consist of the provisions in this OE (including its attachments, forms, exhibits, and any Addenda); the Provider's Application, any TWC Request for Revised Application, the Provider's Response to the Request for Revised Application, and TWC's Service Authorization (SA). No prior agreement or understanding, oral or otherwise, of the parties or their agents will be valid or enforceable unless embodied in these documents. In the event of a conflict between the provisions of these documents, the documents are given the following order of priority: (1) TWC SA; (2) most recent Request for Revised Application (if any); (3) Provider's Response to the Request for Revised Application; (4) Request for Application (OE); and (5) Provider's Application.

TWC may elect to have the Contract(s) resulting from this OE consist of a single document. This document will contain all rights and duties of the parties extracted from the relevant terms and conditions of the OE (including its attachments, forms, exhibits, and any Addenda), the Provider's Response, the Request for Revised Response, if any, and Provider's Response to the Request for Revised Response, if any. Prior to award, TWC will prepare the Contract for review by the Provider.

Discussions may be had concerning possible revisions to the draft Contract to clarify points, further define Contract text, or to correct minor technicalities.

These discussions are to be finalized and all requests for revisions resolved within ten (10) Business Days after the Provider receives the draft Contract for review or such additional time that may be agreed to by TWC. If discussions are not finalized within such time frame, the Application/Enrollment Packet may be rejected.

3.4 ATTACHMENTS AND FORMS

Attachment/Form	Title
Attachment 1	VR OE T&Cs (12/15/2025)
Attachment 2	OE Application Submission Checklist
Attachment 3	VR2891, ILS-OIB Customer Services Progress Report
Attachment 4	VR2954, Comprehensive Assessment for ILS-OIB Program
Attachment 5	VR5053, Application Statement for OIB Program
Form 1	Execution of Application
Form 2	W-9 and Direct Deposit Form (VR 1020)
Form 3	Child Support Certification (VR 1305)
Form 4	TWC VR Standards for Provider Certification (VR 3443)
Form 5	Conflict of Interest Certification (VR 3444)
Form 6	Provider Insurance Certification (VR 3445)
Form 7	Entity Headquarters Information Management Form (VR 3441A)
Form 8	Entity Headquarters Information - Services (VR 3441B)

Attachment/Form	Title
Form 9	Entity Headquarters Information – Location(s) (VR 3441C)
Form 10	Entity's Physical Location(s) – Part A – Service Contracts Certification (VR 3442A)
Form 11	Entity's Physical Location(s) – Part B – General Information Service Contracts (VR3442B)
Form 12	Provider Staff Information Form(s) with Supporting Documentation (VR 3455)

To ensure efficient and timely processing, please adhere to the following guidelines for form submission:

1. Documentation Placement: All supporting documentation must be collated directly behind its corresponding form.
2. Duplicate Forms: Duplicate forms must not be submitted.
3. Specific Example: For instance, if multiple Form 3455s are submitted, the supporting documentation pertinent to each staff member must be appended directly to their specific Form 3455.

Please be advised that improperly organized applications may be rejected or experience significant processing delays.

3.5 SOLE POINT OF CONTACT

All requests, questions, or other communication about this OE must be submitted through the TWC Procurement Portal and will be directed to the Sole Point of Contact below:

Meghan Osborn, CTCD

Procurement Lead

Email: TWC Procurement Portal

3.5.1 Prohibited Communication

Except as provided in **Section 3.5 Sole Point of Contact**, a potential Applicant and Applicant that has submitted an Application is prohibited from any communication with TWC regarding the OE. Unless allowable, TWC, its representative(s), and partners will not answer any questions or otherwise discuss the contents of this OE with any potential Applicant or its representative(s). Attempts to ask questions by phone or in person will not be allowed or recognized as valid. Applicants shall rely only on written statements issued by or through TWC designated staff as provided by the Sole Point of Contact in **Section 3.5 Sole Point of Contact.**

Failure to comply with these restrictions may result in disqualification of Applicant's Application. These restrictions do not preclude discussions between affected parties for the purpose of conducting business unrelated to this OE.

3.6 ADDENDA

Should an addition or correction become necessary after the OE is issued, an Addendum relating the necessary information will be posted to the ESBD. Applicants are responsible for periodically checking the ESBD for addenda or additional information. **Applicants are required to acknowledge the**

Addenda by returning the signed Acknowledgment of Addenda with the Application/Enrollment Packet. Failure to do so does not absolve an Applicant from the requirements contained within any Addenda.

ARTICLE IV APPLICATION PROCESS

4.1 DEADLINE

Applications must be received by TWC as prescribed no later than date and time specified in **Section 3.2 Schedule of Events**.

4.2 GENERAL INFORMATION

Applicants must fully and completely address all requirements described in this OE. Incomplete or partial Applications will not be considered. Applicants must provide all information that is required in accordance with **Section 4.5 Required Application Documents.** Applicants shall prepare an Application that clearly and concisely represents its qualifications.

4.3 DISCREPANCIES

In the event of any discrepancies or variations between copies, TWC is under no obligation to resolve the inconsistencies and may make its selection decision, accordingly, including the decision to potentially disqualify an Application. If Applicant fails to designate an "Original" Application as required by **Section 4.4 Submission Method,** TWC in its sole discretion, will determine the version to be used as the original or may disqualify the Application. If the Applicant submits a redacted Application as the "Original," TWC will disqualify the Application, and it will not be reviewed.

4.4 SUBMISSION METHOD

TWC has implemented the eProcurement platform referred to as the TWC

Procurement Portal. Applicants must upload all documentation indicated to the TWC Procurement Portal link on the "Open Opportunities" tab.

Submissions by any other method **will not** be accepted.

To respond to this OE, Applicants must register through the TWC Procurement Portal website. There is no charge to register.

Step-by-step instructions are available at: Vendor Registration – Procurement.

For step-by-step instructions about the submission process, visit: Submissions – Procurement.

Any issues with uploading must first be addressed with the TWC Procurement Portal Technical Support at the contact information included in the Procurement Information Summary and TWC Procurement Portal Instructions to Applicants document.

Applicants must contact the Sole Point of Contact prior to the deadline if there are issues with using the TWC Procurement Portal and an alternative submission method may be required. Failure to contact the Sole Point of Contact well before the deadline to make alternative arrangements will disqualify any subsequent Application submission.

In no event will TWC be responsible or liable for any delay or error in delivery. TWC is not responsible for electronic submissions that are captured, blocked, filtered, quarantined or otherwise prevented from reaching the proper destination server by any TWC anti-virus or other security software.

It is the Applicant's responsibility to appropriately mark and upload the Application to the TWC Procurement Portal by the specified date. Each Applicant is solely responsible for ensuring its Application is submitted in accordance with all Application requirements and ensuring timely receipt by TWC.

Hard copies received will not be accepted or reviewed.

Application must be RECEIVED by TWC by the Application Deadline identified in Section 3.2 Schedule of Events.

4.5 REQUIRED APPLICATION DOCUMENTS

The Completed Enrollment Packets may be submitted at any time during the enrollment period. All forms listed below must be completed in their entirety and uploaded to your Application **as a separate document in Portable Document Format (PDF)**. **Do not submit encrypted or password protected materials or TWC may eliminate such Applications from consideration for contract award.** *The Application will be rejected if the Applicant does not submit each form as a separate document with required signatures and date, as applicable.*

For qualified Applicants that submit complete applications, Contracts will be developed as they are approved. The volume of applications may vary during the enrollment period, and Contracts may take three (3) months or more to be finalized, depending upon volume and workload.

4.5.1 Modifications and Withdrawals

Prior to the Application submission deadline in **Section 3.2 Schedule of Events**, Applicant may: (1) withdraw its Application by deleting the Application in the TWC Procurement Portal; or (2) modify its Application via the TWC Procurement Portal. When amending its Application, Applicant must follow the instructions provided by the TWC Procurement Portal, revising the section(s) intended, submit and finalize.

Note: TWC will reject the Enrollment Packet if its documents are not submitted in the PDF format and name convention as described in this notice and/or if the forms are submitted as encrypted or password protected.

4.6 BINDING OFFER

Applications shall be binding for a period of one hundred eighty (180) days after the Application due date. An Applicant may extend the time for which its Application will be honored.

4.7 FRANCHISE TAX – RIGHT TO TRANSACT BUSINESS IN TEXAS

If applicable, the Texas franchise tax is imposed on each taxable entity formed or organized in Texas or doing business in Texas.

Applicant must be set up in the Texas franchise tax system prior to Contract award if applicable. Texas franchise tax information can be accessed at https://comptroller.texas.gov/taxes/franchise/.

4.8 AMBIGUITY, CONFLICT, OR DISCREPANCY

Applicants must notify the Sole Point of Contact listed in **Section 3.5 Sole Point of Contact**, of any ambiguity, conflict, discrepancy, exclusionary specification, omission, or other error in the OE.
If Applicant fails to properly and timely notify the Sole Point of Contact listed in **Section 3.5 Sole Point of Contact**, of any ambiguity, conflict, discrepancy, exclusionary specification, omission or other error in the OE, whether awarded a Contract or not, the Applicant:

a. Waives any claim of error or ambiguity in the OE and any resulting Contract;

b. Submits an Application at its own risk;

c. May not contest the interpretation by TWC of such provision(s); and

d. Is not entitled to additional compensation, relief, or time by reason of ambiguity, conflict, discrepancy, exclusionary specification, omission, or other error or its later correction.

4.9 TWC RIGHTS

All materials submitted by an Applicant will become the property of TWC. TWC reserves the right to use any and all ideas presented in any Application to this OE. Selection or rejection of any Application does not affect this right.

The rights of TWC include, but are not limited to:

a. Cancellation of this OE at TWC's sole discretion;

b. Suspension of the procurement process and issuance of OE Addenda;

c. Rejection, in whole or in part, of any and all Applications received for this OE

d. Waiver of administrative deficiencies or minor technicalities in any of the Applications;

e. Utilization of any and all ideas presented in the Applications;

f. Directing any Applicant to submit Application modifications addressing subsequent Addenda;

g. Elimination of any requirements that are not met by all Applicants upon notice to all parties submitting an Application;

h. Making typographical corrections to Applications, with the concurrence of the Applicant;

i. Changing computational errors with the concurrence of the Applicant;

j. Requesting Applicants to clarify the Applications;

k. Requesting Applicants to submit additional information pertaining to the Application; and

l. Awarding a Contract without:

    1. Requesting clarification;

    2. Allowing modification;

    3. Discussing;

    4. Negotiating; and/or

    5. Requesting a revised Application/Enrollment Packet.

ARTICLE V APPLICATION EVALUATION

5.1 APPLICATION SCREENING

a. TWC will review Applications for initial compliance with the Submission requirements in Article IV.
b. TWC will automatically disqualify any Application that does not include one of more of the completed and signed (as applicable) documents.
c. Applications received after the deadline specified in **Section 3.2 Schedule of Events** will be rejected and will not be evaluated or considered for acceptance. TWC is not responsible for Open Enrollment applications that are submitted or received late, illegible, incomplete, or otherwise disqualified due to failure of electronic equipment or operator error.
d. In accordance with Texas Government Code § 2262.055(d), TWC will consider Applicant performance as recorded in the CPA Texas Vendor Performance Tracking System (VPTS), described in Texas Administrative Code, 34 TAC § 20.115.
e. TWC reserves the right to ask questions or request clarification from any Applicant at any time during the screening process.

5.2 REVIEW OF APPLICATIONS

a. TWC will determine whether the Applicant meets all requirements of this OE. To be considered responsive, the Applicant must complete and submit **all required forms in accordance with Section 3.4 Attachments and Forms.**
b. Disqualification of an application can occur when an Applicant fails to:
    1. submit an application in accordance with the requirements of the solicitation; or

2. submit requested corrections or additional documentation within fourteen (14) days unless another timeframe is specified by TWC.
3. Disqualifications for conflicts of interest may occur if:
    - The applicant is employed full-time with another employer;
    - The applicant is employed by a school district as either full- or part-time and is in a position to refer customers to the applicant.

    TWC reserves the right to ask questions to determine if a conflict of interest may arise.

5.3 PUBLIC INFORMATION ACT

Information, documentation, and other materials submitted in connection with this Solicitation or resulting Contract may be subject to public disclosure pursuant to the Texas Public Information Act, Texas Government Code, Chapter 552. See **Attachment 1 Vendor OE T&Cs (12/18/2025)**.

TWC may, in its sole discretion (1), disqualify all Applicants that fail to fully comply with the requirements set forth in this section, or (2) offer all Applicants that fail to fully comply with the requirements set forth in this section additional time to comply. Submitting partial or incomplete information that suggests inclusion of confidential information constitutes failure to comply with the requirements set forth in this section.

5.3.1 Applicant Response

If Applicant asserts that information provided in its Application is exempt from disclosure under the Texas Public Information Act, Applicant must mark and submit two separate, searchable Portable Document Format (PDF) copies (Original Application and "Public Information Act Copy," including

attachments, of the Original Application) as identified below. **This copy is in addition to the original and all copies otherwise required under the provisions of this Solicitation**.

a. Mark Original Proposal:

1. Mark the top of the front page with the words "CONTAINS CONFIDENTIAL INFORMATION" in large, bold, capitalized letters (the size of, or equivalent to, 12-point Verdana font or larger);
2. Mark the bottom of each page that contains information that Applicant claims is exempt from public disclosure with the words "CONTAINS CONFIDENTIAL INFORMATION";
3. Identify, adjacent to each portion of the Response that Applicant claims is exempt from public disclosure, the claimed exemption from disclosure. Vague and general claims to confidentiality will not be acceptable.

NOTE*:* No redactions are to be made in the Original Response.

b. **Mark Public Information Act Copy of Response:**

1. Mark the copy at the top of the front page with "Public Information Act Copy" in large, bold, capitalized letters (the size of, or equivalent to, 12-point Verdana font or larger);
2. Each portion Applicant claims is exempt from public disclosure must be redacted (blacked out); and
3. Identify, adjacent to each redaction, the claimed exemption from disclosure. Each identification provided as required by this subsection (b) must be identical to the redactions identified in subsection (a)(3), above. The only difference in required markings and information between the Original Application and the "Public Information Act Copy" of the Application will be redactions, which can only be made in

the "Public Information Act Copy." There must be no redactions in the Original Application.

Applicant should not submit a Public Information Act Copy indicating that the entire Application is exempt from disclosure. Merely making a blanket claim that the entire Application is protected from disclosure because it contains any amount of confidential, proprietary, trade secret, or privileged information is not acceptable, and this blanket claim will not be considered by TWC.

An Application should not be marked or asserted as copyrighted material. If Applicant asserts a copyright to any portion of its Application, Applicant agrees to reproduction and posting on public websites by the State of Texas, including all other state agencies, without cost or liability and, additionally, agrees to allow the State of Texas to provide a copy of the Application to individuals making a Public Information Act request for the Application.

5.3.2 Contract

Within five (5) Business Days from Contract execution, if the Provider is asserting that certain information in the application is exempt from public disclosure, the Provider must submit a "Public Information Act Copy" of the Original Executed Contract (in addition to the Original Executed Contract) to the TWC Contract Manager by email. The Public Information Act Copy must meet the following requirements:

a. The copy must be clearly marked as "Public Information Act Copy" on the front page in large, bold, capitalized letters (the size of, or equivalent to, 12-point Verdana font or larger).

b. Each portion Provider claims is exempt from public disclosure must be redacted (blacked out); and

c. Provider must identify, adjacent to each redaction, the claimed exemption from disclosure. Each identification provided as required in

Subsection b of this section must be identical to those set forth in the Original Application**.** The only difference in required markings and information between the Original Contract and the "Public Information Act Copy" of the contract will be redactions, which can only be included in the "Public Information Act Copy." There must be no redactions in the Original Executed Contract.

ARTICLE VI GENERAL TERMS AND CONDITIONS

The Terms and Conditions identified in the Solicitation and **Attachment 1 Vendor OE T&Cs (12/18/2025)** are applicable to this Solicitation and any Contract resulting from this Solicitation. TWC reserves the right to incorporate additional provisions in the Contract in the best interest of TWC. In the event of a conflict between this Solicitation and applicable laws and regulations, precedence shall be given to the laws and regulations.

6.1 CONTRACT AWARD

TWC intends to award Contract(s) to qualified Applicants throughout the enrollment period and may award multiple Contracts within individual counties or groups of counties.

Entities, Applicants, and/or individuals that are debarred or excluded by the federal government are excluded from receiving federal contracts or certain subcontracts, and certain types of financial and nonfinancial assistance and benefits. Entities, Applicants and/or individuals that are debarred or excluded by the State of Texas are excluded from doing business with the state.

TWC may consider past performance, or any other factor it deems to be in the best interest of TWC or the State of Texas, when determining whether to

award a contract to an Applicant.

Participation in a post-award orientation will be required before any services related to the awarded Contract can be performed.

6.2 CONTRACT TERM

The Contract Term will commence on the fully executed Contract date and expire five (5) years from date of contract execution. TWC reserves the right to cancel for convenience in the event that the Contract has had no expenditures in a twelve-month period during the Contract Term.

The Contract is contingent upon the continued availability of funding. If funds become unavailable through lack of appropriations, legislative budget cuts, amendment of the General Appropriations Act, TWC consolidation of offices, or any other disruption of current appropriations, Termination provisions of **Attachment 1 VR OE T&Cs (12/18/2025)** shall apply.

6.3 PAYMENTS

Provider(s) must comply with the **Article II Scope of Work**, VR-SFP Manual Chapter 3: Basic Standards, and any other applicable sections of the VR-SFP Manual.

Payments made to Provider(s) will be based on the Fee Schedule shown in **Article II Scope of Work** when all requirements have been achieved.

6.4 CONTRACT AMENDMENTS

The Contract may be amended only by written agreement signed by both the Provider and TWC.

6.5 NO GUARANTEE OF VOLUME, USAGE OR COMPENSATION

TWC makes no guarantee of volume, usage, or total compensation to be

paid to an Applicant under an awarded Contract, if any, resulting from this Solicitation.

TWC reserves the right to cancel or decline to award a Contract under this Solicitation at any time at its sole discretion.

6.6 GOVERNMENTAL ENTITIES

If Applicant is responding to this Solicitation in its capacity as a governmental entity, certain Terms and Conditions found in this Solicitation, including exhibits and attachments, may not be applicable. Furthermore, to the extent permitted by law, if an Application is received from a governmental entity, TWC reserves the right to enter into an interagency or interlocal agreement with the governmental entity.

6.7 COSTS INCURRED

Applicant understands that issuance of this Solicitation in no way constitutes a commitment by TWC to award a Contract. Additionally, TWC is not liable for any costs incurred by an Applicant in the preparation of an Application to this Solicitation. Costs of developing Applications, preparing for, or participating in Oral Presentations and Site Visits, or any other similar expenses incurred by an Applicant are entirely the responsibility of the Applicant, and will not be reimbursed in any manner by the State of Texas.

6.8 APPLICANT WAIVER-INTELLECTUAL PROPERTY

SUBMISSION OF ANY DOCUMENT TO TWC IN RESPONSE TO THIS SOLICITATION CONSTITUTES AN IRREVOCABLE WAIVER AND AGREEMENT BY APPLICANT TO FULLY INDEMNIFY THE STATE OF TEXAS AND TWC FROM ANY CLAIM OF INFRINGEMENT AGAINST THE STATE OF TEXAS AND TWC REGARDING THE INTELLECTUAL PROPERTY RIGHTS OF APPLICANT OR ANY THIRD PARTY FOR ANY

MATERIALS SUBMITTED TO TWC BY APPLICANT.

6.9 REQUIRED INSURANCE

Providers are responsible for their actions and the actions of their employees and subcontractors. Insurance can provide protection to Providers from claims of negligence made by VR Customers.

Providers must maintain insurance as described in VR-SFP Chapter 3 when insurance requirements are applicable. Insurance requirements are subject to change after proposed changes have been posted at least 30 days on the Vocational Rehabilitation Providers' Resources page.

6.10 FAILURE TO PERFORM

If the Provider fails to perform in accordance with the provisions of the contract, TWC may upon written notice to the Provider, take adverse action against the Provider, up to and including terminating the Contract in whole or in part. If notice of termination is given, all work by the Provider shall cease on the effective date of the termination, and TWC will not pay for work performed on or after the effective date of termination. Such termination shall not be an exclusive remedy to TWC but shall be in addition to any other rights and remedies provided by law or under the contract. Adverse action, including termination, may result from, but is not limited to:

1. Violation of the terms of the Contract, including but not limited to, failure to perform any portion of the Contract;
2. Any evidence of abuse, neglect, or exploitation of TWC VR customers receiving services from the Provider as substantiated by an investigation conducted by the Provider, an external regulatory or law enforcement agency, or TWC;
3. Any information giving TWC reason to believe that the health or safety of

TWC VR customers is compromised;

4. Any change in ownership or change in control that TWC believes would adversely affect the delivery of services;
    a. Bringing any individual who is debarred by TWC into the Contract in any financial or legal way (such unacceptable arrangements to include, without limitation, any employment, consulting, contracting, subcontracting, partnership, sale, merger, successor, association or joint venture with a debarred individual);
5. Any real or apparent conflict of interest giving TWC reason to believe that continuation of the Contract is not in the best interest of TWC, the state, or TWC VR customers; or
6. Any violation of state or federal law.

6.11 REMEDIES

The Provider and any of its subcontractors associated with the Contract will remedy in a timely manner any weaknesses, deficiencies, or program noncompliance found as a result of a review, audit or investigation, and any performance or fiscal exceptions found by TWC, the SAO, the federal funding agency, their successor agencies, or any of their duly authorized representatives. TWC may withhold or recoup payments due or paid under the contract, in whole or in part, in the event of the Vendor's noncompliance with any term or provision of the contract, any federal or state law or regulation, or any TWC rules or standards, including, but not limited to, the requirements specifically stated in the contract, relating to the Vendor's performance under the contract, as pursuant to Title 40 TAC § 858.9 or any other appropriate remedies deemed necessary by TWC.

6.12 CHANGE OF OWNERSHIP OR FINANCIAL CONDITION

During the term of the Contract or any extension or renewal thereof, the Provider shall notify TWC in writing of any substantial change in the ownership or control of the Provider as soon as possible, but no later than thirty (30) days prior to its occurrence. Provider must also notify TWC in writing of any change in financial condition as soon as possible, but no later than ten (10) days after its occurrence.

The failure to notify TWC of a change of ownership or control or change in financial condition will be sufficient grounds for rejecting the Application or terminating the Contract. For the purposes of this section, examples of a substantial change in financial condition are events such as insolvency, bankruptcy, or receivership.

6.13 SEVERABILITY

If any provision or portion of this Solicitation is illegal, void, or unenforceable, the other provisions will not be affected.

<End of Solicitation>